

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S RESPONSE TO “RESPONDENT’S MOTION TO STAY OR
FOR CLARIFICATION OF MOTION DEADLINES PENDING CADR
PROCEEDINGS”**

Complainant FormuKleen, Inc. (“FormuKleen”) pursuant to 46 C.F.R. § 502.71(b), by and through their Representative, responds to and opposes Respondent Top Shipping Systems Corp.’s (“TSS”) “Respondent’s Motion to Stay or for Clarification of Motion Deadlines Pending CADR Proceedings” (“Motion”). It misstates the duty to confer, mischaracterizes the purpose of CADRS, ignores dispositive motion rules, and requests unjustified delay. The Motion should be denied in full.

1. The Commission’s Rules Do Not Require Pre-Filing Conferencing on Dispositive Motions

TSS repeatedly invokes a supposed “duty to confer” that does not exist. The Commission’s rules impose a duty to confer before filing non-dispositive motions, not dispositive motions. *See 46 C.F.R. § 502.71(a)*. There is no duty to confer before filing a motion for summary judgment under 46 C.F.R. § 502.70. Nor is there any such obligation in the Initial Order.

Any suggestion that FormuKleen violated some imagined pre-filing obligation is false. TSS’s misunderstanding of the rules does not create obligations that do not exist.

2. Dispositive Motions Are Permitted at Any Time, and CADRS Conferencing Does Not Stay Proceedings

Under 46 C.F.R. § 502.70(a), a party may move for summary decision and there is no prohibition as to when. The rule is clear, and the Initial Order sets procedural deadlines and mandates a Joint Status Report. It does not impose a stay on dispositive motions during CADRS, nor has the Presiding Officer issued such an order.

TSS's argument that CADRS justifies staying all proceedings contradicts the rule and common FMC practice. Parties routinely engage in CADRS conferences while dispositive motions are pending. Participation in ADR does not moot deadlines or immunize parties from facing dispositive motions.

3. TSS's Pro Se Status Does Not Excuse Compliance with the Rules

TSS is a corporate entity. Its choice to appear pro se through a corporate officer does not exempt it from compliance with the Commission's rules, deadlines, or established procedures. Having made the choice to act pro se and after having filed multiple briefs, TSS can not credibly claim ignorance of these requirements or be absolved of their own responsibility to proper procedure.

4. TSS's Manufactured "Confusion" Over Prior Emails is Irrelevant and Self-Inflicted

TSS's Motion recycles complaints about email exchanges concerning two procedural matters FormuKleen ultimately did not pursue. TSS's own exhibits confirm that FormuKleen clearly stated it would not file those motions. That TSS finds itself "confused" after receiving explicit clarification is neither credible nor grounds for relief. Moreover, TSS's fixation on these abandoned procedural matters is entirely irrelevant to the pending motions. Whether or not FormuKleen contemplated filing other motions has no bearing on the merits of the Motion for Summary Judgment or the Motion for Interim Relief; both of which stand on Respondent's own actions and Verified Answer and admissions.

Respondent devotes an entire exhibit to dramatizing email exchanges about two procedural matters FormuKleen ultimately did not pursue. This is a blatant attempt to create a grievance where none exists.

First, the Commission's duty-to-confer requirement under 46 C.F.R. § 502.71(a) applies only to procedural motions where conferral is expressly required. Even if it applied to the Motion for Summary Judgment, which it does not, FormuKleen fulfilled its obligation by informing Respondent of the potential filings and giving Respondent the opportunity to state a position. There is no rule requiring Complainant to provide drafts, detailed explanations, or engage in repetitive rounds of correspondence.

Respondent's Motion reveals a fundamental misunderstanding of what the duty to confer requires. The Commission's Rules impose a simple obligation: a movant must inform the opposing party of the relief it intends to seek and provide a reasonable opportunity to state a position. Nothing in 46 C.F.R. § 502.71(a) requires the movant to explain its legal theory, provide draft filings, justify its actions, or enter into prolonged correspondence because the opposing party chooses not to accept the answer given. The duty to confer is a procedural formality, not an obligation to tutor Respondents, accommodate confusion, or delay filing until the other party is satisfied. By portraying routine pre-filing notice as some form of tactical abuse, Respondent demonstrates either a willful disregard for the actual rules or an attempt to misuse them to obstruct motion practice. Neither warrants the relief Respondent seeks.

Once FormuKleen informed Respondent it would not be filing the motions in question, the matter was over.

Second, Respondent's own exhibits confirm that FormuKleen repeatedly stated, clearly and unequivocally, that it would not be filing either the Motion to Strike pending a decision on the Motion for Summary Judgment or any response related to Respondent's earlier inappropriate email to the

Commission filled with perceived grievances that Complainant contemplated responding to formally. That Respondent persisted in badgering Complainant for “clarification” after receiving direct answers reflects either a complete lack of reading comprehension or a willful attempt to manufacture a procedural dispute.

Third, Respondent’s complaints about the timing of Complainant’s filings is both legally baseless and absurd. The Commission’s electronic filing system allows filings at any time, on any day. There is no “business hours” restriction. Nor does the duty to confer entitle a party to delay filings simply because it claims it was unavailable over a weekend. If Respondent was concerned about the substance of Complainant’s filings, it had the option to oppose them through proper motion practice, not to file frivolous motions complaining about imagined conferral defects. Moreover, even if Respondent’s conferral complaints had any merit (they do not), they have no conceivable relevance to the Motion for Summary Judgment or the Motion for Interim Relief, let alone their Motion to Stay. The Motion for Summary Judgment is a dispositive filing governed by Rule 70, which imposes no duty to confer. The Motion for Interim Relief was an emergency filing in response to Respondent’s own conduct threatening imminent harm, and Complainant acted within its rights under the Commission’s rules. Neither motion requires Respondent’s advance blessing, approval, or protracted pre-filing correspondence. Respondent’s repeated attempts to inject unrelated email complaints into these proceedings reflect a deliberate strategy of conflating unrelated procedural issues to obstruct legitimate motion practice. This tactic is not only meritless; it borders on frivolous.

Furthermore, Respondent’s fixation on a single phrase, where Complainant’s Representative remarked she had been “admittedly not clear” (Motion ¶3 *6) in an informal email exchange, only underscores the bad faith underlying this Motion. The comment was made in reference to an email concerning an irrelevant-to-this-matter proposed motion Complainant explicitly decided ***not to file*** and

confirmed they would ***not pursue***. Rather than accept the clarification provided, and the fact that Complainant's Representative acted professionally by conceding the point on clarity; Respondent clung to a passing remark and has now paraded it before the Commission as if it substantiates some procedural violation. It does not. The Commission's Rules do not require perfection in casual email exchanges, nor do they transform candid professional communication into grounds for procedural delay. This kind of petty "gotcha" tactic is beneath the dignity of this proceeding and should be given no weight.

The transparent purpose of this manufactured grievance is to divert attention from the substance of Complainant's dispositive motions and the fact that Respondent's Verified Answer contains admissions warranting judgment as a matter of law. Respondent's tactic is a textbook example of bad faith procedural posturing, and the Commission should reject it out of hand.

5. TSS's Misunderstanding of CADRS and Settlement Expectations

TSS also appears to labor under the mistaken belief that participation in the Commission's CADRS process obligates Complainant to compromise its claims, suspend motion practice, or otherwise seek settlement. That is not the purpose of CADRS. The Initial Order merely requires the parties to participate in the CADRS conference in good faith. It does not require Complainant to abandon its claims, delay dispositive motions, or agree to any form of settlement. Complainant remains fully entitled to prosecute its case, seek dispositive relief, and decline settlement discussions as it sees fit. The CADRS process is a procedural forum for discussion; not a precondition to litigating claims or motions before the Commission.

6. Respondent's Request for Timeline Modifications is Procedurally and Substantively Baseless

TSS also requests that all pending orders and deadlines be extended or consolidated post-CADRS. That request fails on both procedural and substantive grounds. Procedurally, the Commission's Rules do not permit indefinite extensions of dispositive motion replies or deadlines based on generalized claims of confusion or inconvenience. TSS identifies no legitimate cause, only its own misunderstandings of the rules and desires. Substantively, there is no reason to delay ruling on FormuKleen's dispositive motion or the motion that was filed due solely to Respondent's threats.

The Commission's Rules provide clear timelines for responses to motions under 46 C.F.R. § 502.70(b) and 46 C.F.R. § 502.71(b); deadlines which exist to prevent exactly this kind of open-ended delay tactic. TSS cites no authority allowing a party to unilaterally suspend response deadlines pending CADRS conferences, nor does it articulate any valid cause under 46 C.F.R. § 502.69 for extensions. The request should be denied outright.

Additionally, while Respondent styles its request as one for "clarification" of motion deadlines, the relief it actually seeks is a modification of existing deadlines or the creation of entirely new ones. There is no ambiguity in the Commission's Rules or the Initial Order that requires clarification. The deadlines for responding to dispositive motions are set by 46 C.F.R. § 502.70(b), and Respondent's attempt to recast a request for extensions as a plea for "clarification" is a transparent effort to obtain relief without meeting the Rule's good cause standard.

The irony of Respondent's Motion is that, unlike the dispositive motions at issue, a motion to stay is a non-dispositive procedural motion, precisely the type of motion for which the Commission's duty-to-confer under 46 C.F.R. § 502.71(a) does apply. Yet Respondent filed their Motion without any notice, any effort to confer, or any attempt to narrow issues. In short, Respondent demands adherence to a conferral standard that it wholly ignored in filing the very Motion now before the Commission.

7. Respondent Did Not Comply with Their Duty to Confer

Respondent did not contact Complainant pursuant to 46 C.F.R. § 502.71(a) prior to filing this non-dispositive motion.

8. A Stay Would Prejudice the Timely Resolution of this Case

TSS's Motion is nothing more than an attempt to delay this proceeding and avoid responding to a dispositive motion supported by its own admissions. Granting a stay would reward baseless procedural posturing and undermine the Commission's interest in efficient adjudication.

Conclusion

For the foregoing reasons, TSS's "Motion to Stay or for Clarification of Motion Deadlines Pending CADR Proceedings" should be denied in its entirety.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

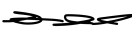
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CERTIFICATE OF SERVICE

I certify that on July 17th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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